

25STCV17808 25STCV17808

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-13

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Case Number: 25STCV17808 Hearing Date: August 13, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 13,
2026

Case Name: Garsinii

v. Growth Management, Inc. et al.

Case No.: 25STCV17808

Motion: Motion

to be Relieved as Counsel

Moving Party: Counsel for Defendants Joy Lewis, John Lewis, Adolescent Growth,
Inc., and Growth Management, Inc.

Opposing Party: Plaintiff

Namahn Garsinii

Tentative Ruling: The

Motions to be Relieved as Counsel is granted in part and denied in part.

Albright, Yee & Schmit APC ("Firm") seeks to be relieved as counsel

of record for Defendants Joy Lewis, John Lewis, Adolescent Growth, Inc. and

Growth Management, Inc., (collectively "Defendants"). Plaintiff Namahn Garsinii ("Plaintiff") filed an opposition to Albright, Yee

& Schmit APC's motion.

Analysis

An attorney is entitled to withdraw upon the consent of the client, or without that consent if approved by the court. (Code Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) In the latter case, counsel must make a motion to be relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship, why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The notice to the client must be done by personal service, electronically, or by mail. If it is done via mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration confirming the service address to be the most current residence or that it is the client's last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).)

Here, Firm filed forms MC-051, MC-052, and MC-053 for each Defendant. However, forms MC-051, incorrectly labeled Defendants Joy Lewis and John Lewis as corporations.

Firm has complied with the procedural and statutory requirements to be relieved as counsel for Defendants Adolescent Growth, Inc., and Growth Management, Inc. However, this is not a legal basis to deny the motions.

Therefore, Albright, Yee & Schmit APC's motion to be relieved as counsel is granted as to Defendants Adolescent Growth, Inc., and Growth Management, Inc.

Albright, Yee & Schmit APC's motion to be relieved as counsel is denied as to Defendants Joy Lewis and John Lewis.